

LAW AND MOTION TENTATIVE RULINGS

DATE: AUGUST 19, 2026 TIME: 8:30 A.M.

TENTATIVE RULINGS ARE NOT POSTED IN UNLAWFUL DETAINER CASES

Notice to prevailing parties: Local Rule 2.10.01 requires you to submit a proposed formal order incorporating, verbatim, the language of any tentative ruling – or attaching and incorporating the tentative by reference - or an order consistent with the announced ruling of the Court, in accordance with California Rule of Court 3.1312. **Such proposed order is required even if the prevailing party submitted a proposed order prior to the hearing with two exceptions: (1) in unopposed matters where the moving party has provided a detailed proposed order or JCC form of order, or (2) where the tentative is simply to “grant”.** Failure to comply with Local Rule 2.10.01 may result in the imposition of sanctions following an order to show cause hearing, if a proposed order is not timely filed.

No. 22CV01798

LEVEE RANCH, LLC v. SUGARBEAR FARMS, et al.

(UNOPPOSED) PLAINTIFF’S MOTION TO COMPEL RESPONSES TO FORM INTERROGATORIES, FOR ORDER DEEMING THAT MATTERS BE ADMITTED, AND FOR MONETARY SANCTIONS

The unopposed motion is granted. Defendants David San Jose and Sugarbear Farms, Inc. shall serve verified code compliant responses to form interrogatories (set three) no later than September 18, 2026.

The court deems admitted all matters specified in the requests for admission, set three. (Code Civ. Proc., § 2033.280, subd. (b).) This will be the order of the court unless defendants serve, before the hearing on the motion, a proposed response to the requests for admissions that is in substantial compliance with Code of Civil Procedure section 2033.220.

“If a party to whom requests for admission have been directed fails to serve a timely response, the requesting party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction pursuant to Section 2033.030 of the Code of Civil Procedure.” (Code Civ. Proc., § 2033.280, subd. (b).) Monetary sanctions are mandatory if requested. (Code Civ. Proc., § 2033.280, subd. (c).)

Plaintiff Levee Ranch, LLC demonstrated it served the discovery at issue on October 2, 2025. Defendants have not provided any responses. (Brodsky Declaration, ¶¶ 9-14.) Sanctions are imposed against defendants, jointly and severally, in the amount of \$1,060.00 (two hours at

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\$500.00/hour plus \$60.00 in filing fees), payable no later than September 18, 2026. (Code Civ. Proc., § 2023.030.)

In the event defendant Sugarbear Farms, Inc. fails to appear at the hearing, the court intends to set an OSC for failure to appear and failure to retain counsel with the intent of striking its answer since it cannot appear without counsel.